



CHAPTER 106.

An Act to provide, in connexion with the present emergency, for amending the Universities and College Estates Act, 1925, and for extending the powers of the Universities of Oxford and Cambridge and the Colleges therein to make statutes. [21st September 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

AMENDMENT OF THE UNIVERSITIES AND COLLEGE ESTATES ACT, 1925.

1.—(1) The purposes for which capital money may be applied under subsection (1) of section twenty-six of the Universities and College Estates Act, 1925 and for which money may be raised and applied under section thirty of that Act by a University or College shall include the making good of any deficiency in the revenues of the University or College in any financial year of the University or College expiring at or before the end of the period of the present emergency which in the opinion of the Minister is due to circumstances attributable directly or indirectly to the existence of a state of war.

Extension
of the
purposes
for which
money may
be applied
or
borrowed.
15 & 16
Geo. 5. c. 24.

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(Emergency Provisions) Act, 1939.

PART I.
—cont.

(2) Subsection (5) of the said section twenty-six and section thirty-two of the said Act shall not apply to any capital money applied or money raised and applied for the purposes mentioned in this section, but the money shall be replaced or repaid within such period, not exceeding fifty years from the end of the period of the present emergency, as the Minister may determine.

(3) Notwithstanding anything in subsection (1) of the said section thirty, no certificate of a surveyor shall be necessary for raising money under that subsection for the purposes mentioned in this section.

Power to
extend
period for
replacement
or repay-
ment of
money
applied or
borrowed.

2. It shall be lawful for the Minister at any time before the end of the period of the present emergency, upon the application of a University or College, in any case where the Minister determines that it is expedient owing to circumstances attributable directly or indirectly to the existence of a state of war so to do, and where in the case of borrowed money the lender consents—

- (a) to extend the period within which purchase or capital money applied or money borrowed before the passing of this Act under the Universities and College Estates Act, 1925, or any enactment replaced by that Act, is required to be replaced or repaid by such period not exceeding ten years as the Minister may determine;
- (b) to suspend the obligation to make such replacement or repayment for such period not extending beyond one year after the end of the period of the present emergency as the Minister may determine, with a corresponding extension of the period of replacement or repayment.

Construc-
tion of
Part I.

3. This Part of this Act shall be construed as one with the Universities and College Estates Act, 1925.

PART II.

POWER OF UNIVERSITIES OF OXFORD AND CAMBRIDGE
AND COLLEGES THEREIN TO MAKE EMERGENCY STATUTES.

Power to
make
emergency
statutes.

4.—(1) Notwithstanding anything in the Universities of Oxford and Cambridge Act, 1923, or any other enactment, it shall be lawful for the University of Oxford or

the University of Cambridge (which Universities are hereinafter severally referred to as "the University") or any College in the University to make statutes for the purposes and in the manner and subject to the provisions mentioned in this Part of this Act, and a statute made under this Part of this Act is hereinafter referred to as an emergency statute.

PART II.
—cont.
13 & 14
Geo. 5. c. 33.

(2) Every emergency statute made by the University shall be binding on the University and on every College which has consented thereto, and every emergency statute made by a College shall be binding on the College and on the University if it has consented thereto, and every emergency statute shall be effectual notwithstanding any instrument of foundation, or any Act of Parliament, Order in Council, charter, decree, order, statute or other instrument or thing constituting wholly or in part an instrument of foundation, or confirming or varying a foundation or endowment, or otherwise regulating the University or a College.

(3) Any emergency statute made before the thirty-first day of July nineteen hundred and forty may, if so expressed, have retrospective effect so as to relate back to any date not earlier than the first day of September nineteen hundred and thirty-nine.

5. The purposes for which provision may be made by an emergency statute shall be the following:—

Purposes
for which
emergency
statutes
may be
made.

- (a) for postponing until any date not later than the end of the period of the present emergency the election or admission to any office in the University or in any College;
- (b) for suspending until any date not later than the end of the said period any such office which may be or may become vacant;
- (c) for the application for any purpose connected with the University or a College of any moneys which may be undisposed of by reason of any such postponement or suspension as aforesaid, or of the income of any trust fund vested in the University or a College (whether the income is administered by the University or College or by any other body) which is not for the time being actually being paid to a beneficiary;

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PART II.
—cont.

- (d) for suspending or modifying until any date not later than the end of the said period any conditions, whether as to residence, duties or otherwise, affecting the tenure or emoluments of any office in the University or College, so however that no such suspension or modification shall be made unless it is in the interest of the holder thereof or is made with his consent;
- (e) for suspending or modifying until any date not later than the expiration of one year after the end of the said period any provision relating to the age or university standing at which any person is eligible as a candidate for any scholarship, prize or other emolument in the University or in any College;
- (f) for enabling any College, until any date not later than the expiration of one year after the end of the said period, in the election to any scholarship, prize or other emolument in the College, to take into account the fact that any person offering himself as a candidate has been engaged in war service;
- (g) for extending the length of tenure of any scholarship, prize or other emolument, whether in the University or a College, in the case of any person who has been engaged in war service or who has been detained during the said period by a neutral Power or a Power at war with His Majesty by reason of circumstances arising out of the existence of a state of war;
- (h) for making payments until any date not later than the end of the said period out of the corporate revenue or other fund applicable to the statutory purposes of a College to the tuition fund of the College;
- (i) for suspending payments until any date not later than the end of the said period from the corporate revenue or other fund applicable to the statutory purposes of a College to any pension or other fund of the College;
- (j) for making payments until any date not later than the end of the said period out of the income

of any fund applicable to any statutory purposes of a College, so far as the income is not required for the purposes of that fund, to any fund applicable to some other statutory purposes of the College;

- (k) for making payments until any date not later than the end of the said period out of the corporate revenue or other fund applicable to the statutory purposes of a College for the relief and assistance of members of the College or other members of the University engaged in war service;
- (l) for making such provisions of a similar nature to any of the foregoing as may seem to be required to prevent any loss or injustice, and to meet exigencies due to circumstances attributable directly or indirectly to the existence of a state of war;

and an emergency statute may contain any incidental, supplemental, or consequential provisions which may appear necessary or expedient for effecting any such purpose as aforesaid :

Provided that an emergency statute shall not authorise or direct any payment out of capital money subject to the provisions of the Universities and College Estates Act, 1925, or affect any obligation arising under that Act, or any enactment replaced by that Act, to make any repayment or replacement.

6. An emergency statute shall be made in the manner in which statutes may now lawfully be made for the University or a College, subject, in the case of an emergency statute made by the University, to the consent of a College affected thereby, and subject, in the case of an emergency statute made by a College, to the consent of the University if affected thereby, in any case where such consent is required under section seven of the Universities of Oxford and Cambridge Act, 1923, but shall take effect notwithstanding that the statute after being made has not been submitted to His Majesty in Council or otherwise proceeded on as provided by the Universities of Oxford and Cambridge Act, 1877, as applied by the Universities of Oxford and Cambridge Act, 1923, or as provided by any other Act, and has not been approved by His Majesty in Council :

Manner of
making
emergency
statutes.

40 & 41 Vict.
c. 48.

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PART II. Provided that an emergency statute made by a
—cont. College—

- (a) shall not take effect unless and until it has been approved by the visitor of the College or, if within fourteen days after it has been made the visitor has neither approved nor declined to approve it, by the Lord Chancellor; and
- (b) shall, within fourteen days of the date on which it is made by the College, be sent for submission to the Council of the University, and if it is a statute to which the consent of the University is not necessary, shall not take effect until thirty days during full term have elapsed after the statute has been so submitted, unless in the meantime the Council has by a resolution declared that the statute is not one which requires the consent of the University, which resolution shall be conclusive for all purposes.

Interpreta-
tion of
Part II.

7. In this Part of this Act the following expressions have the meanings hereby respectively assigned to them :—

- “ College ” means a College in the University, and includes the Cathedral or House of Christ Church in Oxford, and also includes Keble College, Somerville College, Lady Margaret Hall, St. Hugh's College and St. Hilda's College, Oxford, and Selwyn College, Girton College and Newnham College, Cambridge;
- “ Council of the University ” means as respects the University of Oxford the Hebdomadal Council, and as respects the University of Cambridge, the Council of the Senate;
- “ fellowship ” includes studentship of Christ Church;
- “ office ” includes fellowship, scholarship, prize or other emolument;
- “ scholarship ” includes demyship, Bible clerkship, postmastership and studentship (not being a studentship of Christ Church), senior scholarship, and senior demyship, exhibition and sizarship; and
- “ war service ” means service during the period of the present emergency in any of the naval,

military or air forces of the Crown, or any service during that period which in the opinion of the Treasury may properly be treated for the purposes of this Part of this Act in the same manner as service in those forces.

PART II.
—cont.

PART III.

GENERAL.

8.—(1) This Act may be cited as the Universities and Colleges (Emergency Provisions) Act, 1939.

Short title
and inter-
pretation.

(2) In this Act the expression “the period of the present emergency” means the period beginning with the first day of September nineteen hundred and thirty-nine and ending with such date as His Majesty may by Order in Council declare to be the date on which the emergency which was the occasion of the passing of this Act came to an end.

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FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
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